

**BEFORE THE MAHARASHTRA REAL ESTATE REGULATORY AUTHORITY,
MUMBAI**

1. Complaint No.CC006000000057433

Viloo Keki Italia

.... Complainant

Versus

M/s. Sahyog Homes Ltd

.... Respondent

Project Registration No. P51800003040

Along with

2. Complaint No.CC006000000057844

Manav Aggarwal

.... Complainants

Shirin Aggarwal

Versus

M/s. Sahyog Homes Ltd

.... Respondent

Project Registration No. P51800003040

Along with

3. Complaint No.CC006000000057804

Manav Aggarwal

.... Complainants

Shirin Aggarwal

Versus

M/s. Sahyog Homes Ltd

.... Respondent

Project Registration No. P51800003040

Along with

4. Complaint No.CC006000000057760

Shirin Agarwal

.... Complainants

Shagun Udhas

Versus

M/s. Sahyog Homes Ltd

.... Respondent

Project Registration No. P51800003040



Along with
5. Complaint No.CC006000000057767
Manav Aggarwal
Shirin Aggarwal Complainants
Versus
M/s. Sahyog Homes Ltd Respondent
Project Registration No. P51800003040

Along with
6. Complaint No.CC006000000057761
Eshan Aggarwal Complainant
Versus
M/s. Sahyog Homes Ltd Respondent
Project Registration No. P51800003040

Along with
7. Complaint No.CC006000000057849
Shashi Udhas
Pradeep Udhas Complainants
Versus
M/s. Sahyog Homes Ltd Respondent
Project Registration No. P51800003040

Along with
8. Complaint No.CC006000000057843
Pradeep Udhas
Shashi Udhas Complainants
Versus
M/s. Sahyog Homes Ltd Respondent
Project Registration No. P51800003040

Along with
9. Complaint No.CC006000000057848
Shashi Udhas
Pradeep Udhas Complainants
Versus
M/s. Sahyog Homes Ltd Respondent
Project Registration No. P51800003040

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Along with

10. Complaint No.CC006000000058137

Husein K Kuwajerwala
Tina Kumar Darire

.... Complainants

Versus

M/s. Sahyog Homes Ltd
Project Registration No. P51800003040

.... Respondent

Along with

11. Complaint No.CC006000000058139

Tina Kumar Darire
Husein K Kuwajerwala

.... Complainants

Versus

M/s. Sahyog Homes Ltd
Project Registration No. P51800003040

.... Respondent

Along with

12. Complaint No.CC006000000068141

Sonam Kapoor
Sunita Kapoor

.... Complainants

Versus

M/s. Sahyog Homes Ltd
Project Registration No. P51800003040

.... Respondent

Along with

13. Complaint No.CC006000000068143

Rhea Kapoor
Sunita Kapoor

.... Complainants

Versus

M/s. Sahyog Homes Ltd
Project Registration No. P51800003040

.... Respondent

Along with

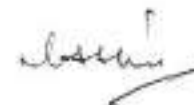
14. Complaint No.CC006000000058131

Qaeed Kuwajerwala
Versus

.... Complainants

M/s. Sahyog Homes Ltd
Project Registration No. P51800003040

.... Respondent



Along with
15. Complaint No.CC006000000058134

Hina Karim Mantri
Karimi Nuruddin Mantri

.... Complainants

Versus

M/s. Sahyog Homes Ltd
Project Registration No. P51800003040

.... Respondent

Along with
16. Complaint No.CC006000000058140

Karimi Nuruddin Mantri
Hina karim Mantri

.... Complainants

Versus

M/s. Sahyog Homes Ltd
Project Registration No. P51800003040

.... Respondent

Along with
17. Complaint No.CC006000000068144

Nafisa Gulamabbas Kapasi
Gulamabbas Kapasi

.... Complainants

Versus

M/s. Sahyog Homes Ltd
Project Registration No. P51800003040

.... Respondent

Along with
18. Complaint No.CC006000000058136

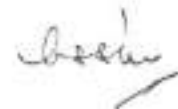
Nazira Hasnain Lala
Hasnain Akbar Ali Lala

.... Complainants

Versus

M/s. Sahyog Homes Ltd
Project Registration No. P51800003040

.... Respondent



Along with
19. Complaint No.CC006000000058142

Zeenat Z Mantri
Zaheed N mantra

.... Complainants

Versus

M/s. Sahyog Homes Ltd
Project Registration No. P51800003040

.... Respondent

Coram: Dr. Vijay Satbir Singh, Hon'ble Member – 1/MahaRERA

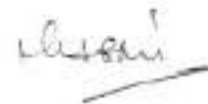
Adv. Jitendra Ahuja a/w Adv. Harshad Bhadbhade a/w Adv. Sonam Singh
a/w. Adv. Anwar Landge a/w. Adv. Sanjeev Singh appeared for their
respective complainants by filing Vakalthnama.

Adv. Nilesh Gala a/w Adv. Rahul Shelar appeared for the respondent.

ORDER

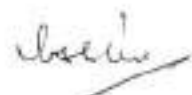
(5th December, 2019)

1. The above named complainants have filed these complaints with MahaRERA, seeking directions to the respondent, to execute registered agreements for sale with the complainants in accordance with the allotment letters issued in favour of the complainants, under the provisions of section-13 of the Real Estate (Regulation & Development) Act, 2016 (hereinafter referred to as "RERA"), and also to pay interest and compensation as per section-18 of the RERA, in respect of bookings of their respective flats in the respondent's project known as "**Verona**" bearing MahaRERA registration No. P51800003040 situated at Oshiwara, Jogeshwari(West), Mumbai-400102.
2. These complaints were clubbed together and kept for hearing on several occasions and the same were heard finally on 16-10-2019, when the concerned parties appeared through their respective advocates and made their submissions. During the hearings, both the parties have sought time to make



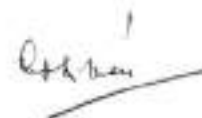
their written submissions and in compliance of principles of natural justice, the MahaRERA granted adequate time to both the parties to submit the same in support of their claims. Further, the respondent has filed an application on record for deciding the preliminary issue of maintainability of these complaints. Accordingly, a detailed hearing was conducted on the said applications at length. Both the parties have also made their submissions in writing.

3. It is the case of the complainants that they have paid more than 10% amount out of total consideration amount in the year 2007 to the respondent M/s. Sahyog Homes Ltd. and have booked their respective flats in the proposed building known as "BBJ Roma" on plot of land bearing CTS No. 1/c(pt), 397, 397 to 12, 398, 398/1,399(pt), 400(pt), 405(pt),406, 407(pt), 408(pt), 410C(pt), 218(pt), 219(pt), 220 & 376, 377, 379, 380 of Village Oshiwara, Taluka Andheri. However, without obtaining the consent of the complainants the respondent M/s. Sahyog Homes Ltd has granted development right in respect of said property to another promoter Sankalp Siddhi Developers Private Limited. The latter changed the name of the project from "BBJ Roma" to "BBJ Verona" and started construction of the said building. The complainants have persuaded the matter with the respondent M/s. Sahyog Homes Ltd for execution of registered agreements for sale with them in accordance with the allotment letters issued by the M/s. Sahyog Homes Ltd. However, no action has been taken on their requests so far.
4. The respondent M/s. Sahyog Homes Ltd has resisted the claims of the complainants by raising various defenses in the reply as well as an application for maintainability of these complaints. The respondent has stated that the complainants are the allottees of 'BBJ Roma' which is not registered with MahaRERA. However, the project known as Verona is registered with

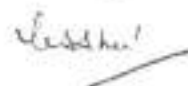


MahaRERA. The respondent further stated that, for the project known as BBJ Roma, no sanctioned plan/commencement certificate has been obtained from the concerned authority. Further the money paid by the complainants have been utilised for rehabilitation of about 1300 slum dwellers under the Slum Rehabilitation Scheme and still 400 slum dwellers are there to be rehabilitated. The respondent further stated that in the project "Verona" there are around 1500 allottees with whom the registered agreements for sale have already been executed. Therefore, the complainants cannot be accommodated in the said project. The respondent, therefore, prayed MahaRERA to decide the application filed for deciding maintainability of these complaints.

5. During the hearing, to verify the layout & plan approved by the planning authority, the officers from SRA were called for a meeting on 3-12-2019. Accordingly, the officers from SRA have attended the meeting and explained the sanctioned layout plan of the said Slum Rehabilitation Scheme undertaken by the respondent.
6. The MahaRERA has examined the rival submissions made by both the parties as well as the records. The facts of these cases, particularly the allotment letters issued in favour of the complainants show that they have paid the money for booking of their flats in the project known as "BBJ Roma", which got stalled and the respondent/promoter could not commence the work of the project. The respondent has undertaken the said project under Slum Rehabilitation Scheme under Regulation 33(10) of DCR-1991 read with Appendix-IV. The SRA being planning authority/ competent authority has sanctioned the layout plan in which some projects have been shown and the sale buildings have been named as "S-2, S-4", etc. However it is not possible to find out the names of the buildings.

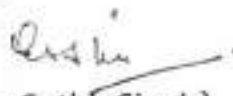


7. The record also shows that at present the respondent has undertaken the projects in the name of Verona, Oshi and Lamour in which the complainants prima facie do not seem to be the allottees. Although they paid the money for "BBJ Roma" the same has not been started in the approved layout of SRA. The complaints filed in the project "Verona" do not appear to be maintainable, for want of any cogent documentary proofs such as, bookings or allotment letters pertaining to the allotments of flats in the project known as "Verona". In its submission before MahaRERA, the respondent also offered to pay the complainants interest on the money which they have paid along with the interest as prescribed by RERA.
8. It was also noticed by the MahaRERA that a complaint was filed regarding the issue of non-registration of the project known as "BBJ Roma" in the year 2017 with MahaRERA under "Source Information". During scrutiny of the said matter, the records show that the respondent had submitted that it could not register the said project "BBJ Roma" because of the large numbers of slum dwellers occupying the said plot of land. Therefore, it could not get necessary approvals from the planning authority, i.e. SRA. It was further submitted that it was ready and willing to refund the money paid by the allottees with interest. However, this shows that the respondent recognizes the complainants as allottees in the project known as "BBJ Roma".
9. In view of the aforesaid facts, it appears that the complainants are allottees in the project "BBJ Roma", which has not been registered by the respondent. The money paid by them has been utilised. Hence, the promoter is directed to treat the complainants as allottees in the project ("BBJ Roma" or any other name), which it registers in future as per the sanctioned layout. The complainants are also entitled, if they so desire, to seek refund of their money along with



interest as offered by the respondent/promoter in its submissions at the rate prescribed by RERA, i.e. Marginal Cost of Lending Rate (MCLR) of State Bank of India (SBI) plus 2% from the date of their payment of money to the respondent. The allottees may also approach Slum Rehabilitation Authority (SRA) or its High Power Committee/Apex Grievance Redressal Committee (AGRC) for the redressal of their grievances relating to the sanctioned layout and approved projects therein.

10. With the above observations and directions, all 19 complaints along with applications filed by the respondent for maintainability of these complainants stand disposed of.


(Dr. Vijay Satbir Singh)
Member – 1/MahaRERA

महा-रेरा

**BEFORE THE MAHARASHTRA REAL ESTATE REGULATORY
AUTHORITY,
MUMBAI**

**Non-Execution application in
Complaint No. CC006000000057760**

Shirin Agarwal

..Complainant

Alongwith

**Non-Execution application in
Complaint No. CC006000000057761**

Eshan Aggarwal

..Complainant

Alongwith

**Non-Execution application in
Complaint No. CC006000000057767**

Manav Aggarwal

..Complainant

Alongwith

**Non-Execution application in
Complaint No. CC006000000057804**

Manav Aggarwal

..Complainant

Alongwith

**Non-Execution application in
Complaint No. CC006000000057843**

Shashi Udhas

..Complainant

Alongwith

**Non-Execution application in
Complaint No. CC006000000057844**

Manav Aggarwal

..Complainant

Alongwith

**Non-Execution application in
Complaint No. CC006000000057848**

Shashi Udhas

..Complainant

Alongwith

**Non-Execution application in
Complaint No. CC006000000057849**

Shashi Udhas

..Complainant

Vs

Sahyog Homes Limited

..Respondent

Shashi Udhas

MahaRERA Project Registration No. P51800003040

Coram: Dr. Vijay Satbir Singh, Hon'ble Member - 1/MahaRERA

Adv. Rahul Dangle appeared for all the complainants.

Adv. Manish Gala appeared for the respondent.

ORDER

(30th September, 2020)

(Through Video Conferencing)

1. The complainants above named have filed this application for non-execution of order dated 5-12-2019 passed by the MahaRERA in the aforesaid complaints filed with respect to project registered by the respondent with MahaRERA. By the said common order all these complaints were disposed of with directions to treat the complainants as allottees of the project known as 'BBJ Roma' or any other name the project will be registered with MahaRERA as per sanctioned layout plan. The complainants if so desire to seek refund of their money along with interest at the rate prescribed under RERA as offered by the respondent in its submissions.
2. These applications are heard finally today as per the Standard Operating Procedure dated 12th June 2020 issued by MahaRERA for hearing of complaints through Video Conferencing. Both the parties have been issued prior intimation of the hearing. Accordingly, both the parties appeared and made their submissions.
3. During the hearing, the complainants have informed MahaRERA that they are seeking refund of their money paid to the respondent along with interest at the rate prescribed under RERA. Accordingly after passing of the said order, they have issued letter to the respondent on 4-02-2020.



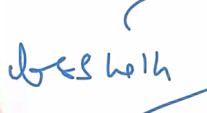
However till date the respondent has not taken any action on it. The complainants further stated that till date the respondent has also not challenged the order passed by the MahaRERA. Hence, the complainants pressed for the refund along with the interest as per the direction issued by the MahaRERA vide the said order dated 5-12-2019.

4. However, during the hearing the respondent has stated that since the complainants are seeking monetary claim, the MahaRERA has no jurisdiction to entertain such issues. Further, the complaints filed by the complainants itself are not maintainable in this project and therefore they cannot seek compliance of the said order in this project.
5. The MahaRERA has examined the arguments advanced by both the parties as well as the record. In the present case, admittedly, the respondent has not challenged the order dated 5-12-2019 passed by the MahaRERA in the aforesaid complaints till date and therefore the MahaRERA feels that the said order has attained its finality. If the respondent was aggrieved by the said order, it should have challenged the same within the time line given under the provisions of law. Hence now after a period of 9 months, the respondent cannot raise the issue regarding the execution of the said order. Further the said order was passed after discussing all the facts and merits of the case and hence now the respondent cannot raise similar issues as raised at the time of final hearing of these complaints.
6. Since, the complainants are seeking refund of their money paid to the respondent and as the moratorium period granted by the MahaRERA vide

Circulars / notifications Nos. 13 and 14 dated 2-04-2020 and 18-05-2020 got over by 14th September, 2020, the MahaRERA directs the respondent to refund the entire amount paid by the complainants along with interest at the rate prescribed under Real Estate (Regulation & Development) Act, 2016 and the Rules and Regulations made there under within a period of 30 days from the date of this order failing which appropriate penal action would be taken against the respondent under the relevant provisions of the RERA.

7. With the above directions, all 8 non-execution applications stand disposed of.




(Dr. Vijay Satbir Singh)
Member - 1/MahaRERA

**BEFORE THE
MAHARASHTRA REAL ESTATE REGULATORY AUTHORITY
MUMBAI**

NON - COMPLIANCE APPLICATIONS

In

1. COMPLAINT NO: CC006000000057760

Shirin Agarwal Complainant

Versus

Sahyog Homes Limited Respondent

Along With

2. COMPLAINT NO: CC006000000057761

Eshan Aggarwal Complainant

Versus

Sahyog Homes Limited Respondent

Along With

3. COMPLAINT NO: CC006000000057767

Manav Aggarwal Complainant

Versus

Sahyog Homes Limited Respondent

Along With

4. COMPLAINT NO: CC006000000057804

Manav Aggarwal Complainant

Versus

Sahyog Homes Limited Respondent

Along With

5. COMPLAINT NO: CC006000000057843

Shashi Udhas Complainant

Versus

Sahyog Homes Limited Respondent

Along With

6. COMPLAINT NO: CC006000000057844

Manav Aggarwal

.... Complainant

Versus

Sahyog Homes Limited

.... Respondent

Along With

7. COMPLAINT NO: CC006000000057848

Shashi Udhas

.... Complainant

Versus

Sahyog Homes Limited

.... Respondent

Along With

8. COMPLAINT NO: CC006000000057849

Shashi Udhas

.... Complainant

Versus

Sahyog Homes Limited

.... Respondent

MahaRERA Registration. No. P51800003040

Coram: Dr Vasant Prabhu, Secretary, MahaRERA

Ld. Adv. Rahul Dangle appeared for all the complainants.

Ld. Adv. Manish Gala a/w. Adv. Nilesh Gala appeared for the respondent.

Order

25th June 2021

(Through Video Conferencing)

1. The above 8 Complainants are a part of the group of 19 complainants in whose complaints a common order dated. 5th December 2019 was passed by Hon'ble Member I. The above 8 Complainants have filed/ raised individual applications for non-

compliance by the Respondent of the Order dated. 5th December 2019.

2. In the above 8 applications, Hon'ble Member I had passed a common non-compliance order dated. 30th September 2020 directing the respondent to refund the entire amounts paid by the complainants along with interest as per provisions of RERA within 30 days from the date of the order. The order dated. 30th September 2020 further stated that, upon failure of the respondent to refund the amounts along with interest, appropriate action will be initiated against the respondent.
3. On the said non-compliance applications, the hearing was held on 23rd March 2021 when the respondent submitted that, review applications were filed by the respondent against the non-compliance order dated. 30th September 2020 issued by Hon'ble Member I, MahaRERA and therefore sought adjournment. The hearing on these non-compliance applications was held again today through video conferencing as per MahaRERA Circular no. 27/2020 and MahaRERA Order No. 15/2020.

4. **Submissions on behalf of the Complainants**

The Complainants submitted that, Respondent has till date failed to comply with the order dated. 5th December 2019 and has not refunded the amounts paid by the Complainants along with the interest as sought by them. It is submitted on behalf of the Complainants that, they have been following up with the Respondent for the refund however, the said request is not complied. The Complainants further submitted that, the

Respondent has till date not challenged the order dated. 5th December 2019 and hence MahaRERA has the jurisdiction to entertain the applications and decide upon them. The complainants further submitted that, the respondent has not even complied with the order of non-compliance dated. 30th September 2020 passed by Hon'ble Member I directing the respondent to refund the complainants' amounts with interest. In rejoinder, the Complainants submitted that, only delay tactics are being used by the Respondent and the respondent has failed to get any order in the review applications filed against the order of non-compliance dated. 30th September 2020. It is further submitted that, the orders/ judgements relied upon by the Respondent and the arguments canvassed are as if an appeal is being heard and not an execution application. The Complainants therefore sought action against the Respondent and sought issuance of the recovery warrant under section 40(1) of the Real Estate (Regulation & Development) Act, 2016 against the Respondent.

5. Submissions on behalf of the Respondent

The Respondent resisted the claim of the Complainants and submitted that, primarily since the review applications have already been filed against the order dated. 30th September 2020, the applications for non-compliance should be adjourned till the disposal of the review applications. The Respondent further submitted that, the order dated. 30th September 2020 is not enforceable since the order dated. 5th December 2019 is erroneous on the face of it. The Respondent further submitted that, the complainants are not allottees in the project which is registered with MahaRERA and the same has been mentioned by

MahaRERA in the order dated. 5th December 2019. The respondent thereafter relied upon the following judgements viz.

"1. Supreme Court of India, Civil Appeal No. 6575 Of 2008 [Chandrabhai K. Bhoir & Ors. vs Krishna Arjun Bhoir & Ors.],

2. Supreme Court of India [Kiran Singh And Others vs Chaman Paswan And Others, Equivalent citations: 1954 AIR 340, 1955 SCR 117] and,

3. High Court at Bombay, Civil Writ Petition (ST) NO. 1118 OF 2021 [Macrotech Developers Limited vs State of Maharashtra & Ors.]".

The respondent vide. the above citations, has stated that, complaints are not maintainable before MahaRERA against the projects that are not required to be registered and the order issued by the MahaRERA is a nullity and it cannot be executed. During the course of hearing, the respondent showed its willingness to pay the principal amount to the complainants, however, denied paying the interest as directed in the order dated. 30th September 2020.

6. From the submissions and arguments advanced by the parties, it is clear that, the respondent has failed to comply with the order dated. 5th December 2019 as well as the order of non-compliance dated. 30th September 2020, seeking refund of the amounts paid by the complainants along with interest. Further, the respondent has not challenged the order dated. 5th December 2019 passed by Hon'ble Member I till date before the Hon'ble Appellate Tribunal and hence, the said order has now reached finality. If the respondent was aggrieved by the order dated. 5th December

2019, it should have been challenged by the respondent within the timeline given under the provisions of law. The respondent has however, filed individual review applications against the order of non-compliance dated. 30th September 2020 passed by the Hon'ble Member I, MahaRERA on 4th November 2020.

7. As regards the case of the Respondent that, these applications be adjourned till the disposal of the review applications filed by the respondent, it has to be noted that, the review applications have been filed by the Respondent on 4th November 2020. The respondent has, however, failed to obtain any order in the said review applications till date. During the hearing of these non-compliance applications scheduled on 23rd March 2021 before this forum, the non-compliance applications were adjourned on request of the respondent thereby granting time to the respondent to get orders in the review applications. However, the respondent has failed to get any decision in the review applications even after a period of three months from the date of hearing of the non-compliance applications on 23rd March 2021. Therefore, considering above facts, the submissions of the Complainants that, Respondent is using delay tactics needs to be accepted and there is no reason to adjourn the present non-compliance applications and the Respondent would always be at liberty to seek hearing of the review applications before the Appropriate Forum.
8. With regards to the arguments of the Respondent regarding the order dated. 5th December 2019 being without jurisdiction and a

nullity, this Forum cannot examine the correctness of the order under execution which has attained finality.

9. With regards to the willingness shown by the Respondent to pay the principal amounts to the Complainants without interest, the same cannot be accepted, since the Complainants have invested their hard-earned money with the Respondent. However, the Respondent has failed to complete the project or refund their monies with interest till date. Moreover, payment of interest on the money invested by the allottees is not a penalty but a type of compensation for delay which has been clarified by the Hon'ble High Court of Judicature at Bombay in the judgement dated. 6th December 2017 passed in Writ Petition No. 2737 of 2017 filed by Neelkamal Realtors Suburban Pvt. Ltd. & Anr. Hence, the Respondent is under an obligation to refund the amounts of the Complainants along with the interest as per the orders issued by the MahaRERA dated. 5th December 2019 and 30th September 2020. Hence, the Complainants are entitled to seek action against the Respondent through these non-compliance applications.

10. In view of the above any further time granted to the Respondent would lead to injustice against the Complainants. Hence, as requested by the Complainants, individual recovery warrants in each complaint be issued against the Respondent under section 40(1) of the Maharashtra Real Estate (Regulation & Development) Act, 2016, read along with rule 3 of the Maharashtra Real Estate (Regulation & development) (Recovery of Interest, Penalty, Compensation, Fine Payable, Forms of Complaint & Appeals etc.) rules, 2017.

11. Consequently, all the present applications stand disposed of.


(Dr. Vasant Prabhu)
Secretary, MahaRERA

